Amendment to Idaho Constitution - House Joint Resolution 4

A Joint Resolution proposing an Amendment to Section 26, Article III of the Constitution of the State of Idaho relating to psychoactive substances:

"Shall Section 26, Article III of the Constitution of the State of Idaho be amended to provide that only the Idaho Legislature shall have power and authority to legalize the growing, producing, manufacturing, transporting, selling, delivering, dispensing, administering, prescribing, distributing, possessing, or using of marijuana, narcotics, or other psychoactive substances?"

Legislative Council's Statement of Meaning, Purpose, and Result to Be Accomplished

This proposed constitutional amendment would give the Legislature exclusive authority to legalize marijuana, narcotics, or other psychoactive substances in the State of Idaho.

WHAT YOUR VOTE WILL DO

Yes

A **YES** vote would give the Legislature exclusive authority to legalize marijuana, narcotics, or other psychoactive substances in the State of Idaho.

No

A **NO** vote would make no change to Idaho's Constitution, which currently allows changes to Idaho's controlled substances laws using the initiative process.

Statement For The Proposed Amendment

Drugs destroy lives, tear apart families, and threaten the safety of our communities. Decisions about legalizing marijuana, narcotics, and other psychoactive substances are too important to be made lightly. The proposed amendment would ensure that any proposal to legalize these dangerous substances would go through the legislative process. Public hearings would be held on the proposal, where law enforcement and people whose lives have been damaged by drugs would be able to testify. Legislators would carefully consider each proposal and would be publicly accountable for their votes.

Statement Against The Proposed Amendment

The Idaho Constitution says that all political power belongs to the people. But the proposed amendment would take power away from the people by getting rid of their ability to pass drug legalization laws on their own through ballot initiatives. The people are as capable of making good, careful decisions about drug policy as legislators are. The amendment is also unnecessary because if the people did ever pass a poorly considered law legalizing drugs, the Legislature would have the power to amend or repeal it.

FULL TEXT OF PROPOSED CONSTITUTIONAL AMENDMENT

Section 26. POWER AND AUTHORITY OVER INTOXICATING LIQUORS AND PSYCHOACTIVE SUBSTANCES. (1) From and after the thirty-first day of December in the year 1934, the legislature of the state of Idaho shall have full power and authority to permit, control and regulate or prohibit the manufacture, sale, keeping for sale, and transportation for sale, of intoxicating liquors for beverage purposes.

(2) Effective immediately upon adoption by the voters of Idaho, only the legislature of the state of Idaho shall have power and authority to legalize the growing, producing, manufacturing, transporting, selling, delivering, dispensing, administering, prescribing, distributing, possessing, or using of marijuana, narcotics, or other psychoactive substances.